

f) References

See also in this chapter: T.703/12 (timing of a request that a witness be heard – generic reference to submissions in opposition); T.480/11 (late witness); T.838/92 (impartiality of a witness); T.267/06 (need to order the hearing of a witness); T.716/06 (whether the evidence offered was useful); T.1096/08 and T.225/03 (first-instance department wrongly decided not to hear the witnesses); T.1100/07 (department of first instance's decision not to order hearing of witnesses justified in one case but not in the other); T.190/05 (citing T.474/04 extensively and specifying how the department of first instance should have proceeded); T.361/00 (unnecessary to hear author of unsworn written statements as a witness because statements irrelevant to outcome of the decision); T.1210/05 (conclusions based exclusively on the testimony of a witness); T.832/13 (serious doubts due to the general nature of the statement); R.6/12 (hearing witnesses/experts not ordered by the board).

2.4.2 Difference between witnesses and experts

The boards of appeal have drawn a distinction between the hearing of witnesses and the hearing of **opinions by experts**: a witness is put forward to substantiate facts of which he/she has personal knowledge. In T.311/01 the appellant (opponent) offered witness testimony on the skilled person's knowledge and understanding of the cited prior art. However, the testimony was offered as evidence not of specific facts but of the knowledge and ideas of skilled persons in the technical field concerned, so that the appellant was in fact offering experts, not witnesses. Regarding itself expert enough with regard to the features and advantages described in the prior art, the board refused to hear the proposed "witnesses" (see also T.1511/06, T.1676/08 and T.32/10).

In T.480/11 the subject on which the proposed technical expert Mr J. intended to speak according to the appellant's request was not simply a technical issue but an event in the past, namely the performance of experiments and the results obtained thereby, which had taken place at the appellant's laboratory. So the appellant's request was actually directed to hearing Mr J. as a witness rather than as a technical expert. The board decided not to hear Mr J, as the respondent would have had to be given sufficient opportunity to challenge the witness statement and it would have been necessary to adjourn the oral proceedings.

2.4.3 Expert opinions (Article 117(1)(e) EPC)

The decisions reported below concern requests that the board take evidence from an independent expert under Art. 117(1)(e) EPC and R. 121 EPC (the case law shows that the boards refused those requests). Such cases are to be distinguished from those where opinions of a party's expert are submitted as evidence (which are more common).

T.753/09 stated that an **expert declaration** had to be regarded **not just as an argument**, but as evidence pursuant to Art. 117(1)(e) EPC.

Under the established case law of the boards of appeal, obtaining an expert opinion as per Art. 117(1)(e) EPC and R. 121 EPC is essentially to be considered only when a board

is unable to decide on an issue without advice from a technical expert, since it is first and foremost down to the parties to find the necessary evidence (T 1906/17). In T 1906/17, the respondent (patent proprietor) had not set out why an independent expert needed to be heard for the decision.

In T 375/00 the board, ruling on the opponent's request that it order an expert opinion under Art. 117(1)(e) EPC, held that actively seeking experts to help the case of one of the parties could leave it open to an accusation of partiality and that it was for the parties to find the evidence they needed. **Only if** the board did not consider itself in a position to decide upon a matter without technical assistance would expert evidence within the meaning of Art. 117(1)(e) EPC become appropriate (T 1676/08, citing also T 395/91, T 230/92, T 375/00, T 311/01 and T 1907/06). Other cases rejecting a request for an expert opinion: T 1548/08, T 1763/06, T 38/15, T 377/17 (independent expert opinion on Art. 83 EPC requested and refused; point of law), T 471/16.

In T 443/93 too, the board refused a request for such an expert opinion made at the oral proceedings after a witness had been heard, noting that the appellant had neither filed the request on time, nor supplied specific grounds justifying such a request at that stage in the proceedings. See also T 8/13.

In T 392/06, during oral proceedings the respondent (opponent) requested the appointment of an independent technical expert in view of the contradictory experimental results of the appellant (proprietor) and the respondents (opponents). The board had no reason to substitute for the respondents **to compensate for their deficiency** in the provision of the evidence which supported their objection of lack of novelty in allowing an independent expert. Furthermore, commissioning of an independent expert would have made postponement of the oral proceedings necessary, which was contrary to Art. 13(3) RPBA 2007 (see also the obiter dictum in T 998/04, reported in this chapter III.G.5.1.1, on the burden of proof).

2.4.4 Expert opinion submitted by a party

Following on from the section on expert opinions ordered by a board (Art. 117(1)(e) EPC), this section relates to expert opinions the parties themselves furnish as evidence (as occurs most often in practice).

In T 517/14 (priority right, Israeli law), with regard to an expert opinion submitted by the appellant the board noted that, while an opinion by an expert who has represented a party "in numerous proceedings" may, upon free evaluation of the evidence, have carried less weight than a court decision, another independent authority under the national law or an expert commissioned by the board under Art. 117(1)(e) EPC together with R. 117, first sentence, EPC, an opinion of a party's expert was a **means of evidence** under Art. 117(1) EPC.

In the following cases, the boards likewise dealt with expert opinions offered by a party: T 1676/08, T 658/04, T 885/02, T 276/07 (expert opinion not translated from Italian), T 74/00 (legal expert opinion, Japanese law), T 1201/14 (transfer of right of priority – US

law, Taiwanese law); R.18/09 (external legal opinion on the admissibility of the petition), T.156/15 (opinion of a former board member submitted as expert evidence), T.2132/16 (opinion of different technical experts and a transcript of their cross-examination in a UK court case). See also T.335/15, in which two months before the oral proceedings the opponent had filed a request that a technical expert be heard but did not specify on what point that expert would be speaking until the oral proceedings. The board ruled on the issue with reference to the findings in G.4/95 on oral submissions by an accompanying person. More generally, this issue is discussed in chapter III.V. "Representation".

2.5. Statements in writing

2.5.1 Sworn statements and affidavits

Art. 117(1)(g) EPC provides for sworn statements in writing as a means of evidence (rare in practice). However, since any kind of evidence is admissible in proceedings before the EPO, other, less solemn types of written statement (common in practice), e.g. statutory declarations, are also accepted. It is for the decision-making departments then to assess their probative value on a case-by-case basis. Such declarations consist of a witness's written statement, the main purpose of which is to avoid the need to hear that witness. The various departments may, however, decide to order such a hearing, for example if a party so requests. The terminology used in the case law of the boards of appeal includes "affidavits", "statutory declarations" and "unsworn statements" (French: "déclarations écrites", "déclarations sur l'honneur" and "attestations"; German: "eidesstattliche Versicherungen" and "eidesstattliche Erklärungen").

For further decisions dealing with unsworn declarations, see T.443/93, T.563/02. The board in French-language case T.2338/13 explicitly referred to affidavits as "attestations". The board in T.474/04 (OJ 2006, 129), which had English as the language of the proceedings, referred to a document entitled "eidesstattliche Versicherung" as a "declaration in lieu of an oath" and an "unsworn witness declaration". In T.703/12, the board called a document of this kind entitled "eidesstattliche Versicherung" a "statutory declaration" and in T.1231/11 an "affidavit". In proceedings before the EPO even a simple declaration can be an admissible means of evidence within the meaning of Art. 117(1) EPC (T.474/04, OJ 2006, 129).

A statutory declaration ("eidesstattliche Erklärung" or "déclaration tenant lieu de serment") is a means of giving evidence within the meaning of Art. 117(1) EPC and as such is subject to the **principle of free evaluation of evidence** (T.558/95, cf. T.482/89, OJ 1992, 646; T.575/94). The EPO accepts unsworn solemn declarations the same way it accepts other unsworn statements (T.970/93, T.313/04, T.535/08). Older decisions include T.770/91, J.10/04 and T.1127/97.

The board in T.939/14 also held that the objection that affidavits did not meet the requirements of Art. 117(1)(g) EPC failed on the whole because standard board of appeal practice was to handle witness declarations, in whatever form or manner they are made, pursuant to the principle of free evaluation of the evidence.

In R 3/10 the Enlarged Board took signed declarations of persons who had attended the oral proceedings into account.

In T 915/12 the board considered that there was not sufficient evidence to prove that D16 – an extract from the encyclopedia- was made available to the public before the priority date (5 February 2001). The printing (2000) and copyright (1999) years indicated in D16 could **not alone** prove accessibility before early 2001. The hand-written annotation made by Ms S. – Head of Collections Department University – on the cover page did not fulfil the requirements of form and content which usually apply for affidavits or similar documents.

2.5.2 Relationship between witness and party

The board may consider an affidavit to be admissible evidence even if it is signed by the general manager of the appellant (see T 327/91). In T 2003/08 of 31. October 2012 (reported in this chapter) the board observed that relations with the appellant's (opponent's) company could possibly have influenced Dr W's and Dr K's objectivity concerning their declarations ("Eidesstattliche Versicherung"). The board considered that its reservations concerning declarations E1 (declaration of Dr W, lecturer) and E2 (declaration of Dr K, member of the audience) could possibly be dispelled by hearing the authors of declarations E1 and E2 themselves.

In T 523/14 the appellant (patent proprietor) objected to the credibility of statements written by two **employees** of the respondents concerning alleged prior publication D11 (an advertising newsletter sent by e-mail). In the board's view, while the written statements of independent persons would tend to carry more weight, the statements of employees of parties to the proceedings were not objectionable per se.

In T 558/95 the board held that the fact that the statutory declarations produced by the opponent partly used the same wording and had been drawn up by employees of the opponent did not necessarily mean they should be excluded as inadmissible. The opposition division had discretion to decide whether to examine them, and to **determine whether or not** the evidence in them was **sufficient**.

See also in this chapter III.G.2.4.1 b) "Relationship between witness and party" and III.G.4.2.2 a) "Credibility of allegedly linked witnesses".

2.5.3 Statutory declarations and hearing witnesses

In T 674/91 the board pointed out that according to the practice of the boards of appeal, affidavits or statutory declarations, whether in original or copy form, are considered as possible means of providing evidence. One purpose of written declarations is to avoid the need to hear the undersigning person as a witness. Where such declarations consist of answers to questions put forward by legal experts several declarations may have certain **stereotyped formulations** in common.

In T.41/19, the appellant (patent proprietor) asserted that an affidavit should only be taken into account if the person who provided the affidavit could also be called as a witness. The board did not agree, stating among other things that affidavits were one possible form of evidence in the non-exhaustive list in Art.117 EPC and so could be taken into consideration as stand-alone evidence as per the principle of free evaluation of the evidence.

In T.474/04 (OJ 2006, 129), where one party invoked T.674/91 to justify not having to hear the author of an unsworn witness declaration ("eidesstattliche Versicherung") as a witness, the board pointed out that the case before it was different in that the fundamental assertions made in the declaration were **contested**, the author had been offered as a witness, and the appellant had consistently demanded that he be heard. The opposition division's decision not to summon him as a witness although he was available had handicapped the appellant in its defence against what turned out to be the **decisive piece of evidence**. It was observed that this piece of evidence largely lay "within the power and knowledge of the opponent". Compare with T.2659/17 (see infra, ranking of means of evidence), which cites various sections of T.474/04 and concludes, on the basis that the evidence of an alleged prior use was in the opponent's hands, that the opposition division **should have heard** the author of the pivotal, contested declaration as a witness so as not to deprive the patent proprietor, who had made the request that the witness be heard, of its right to be heard under Art. 113(1) EPC.

As to whether, when offered, the author of a declaration should be heard as a witness in addition to their declaration, see the chapter "Evidence" and in particular chapter III.G.3.3 "Right to be heard"; as to when a declaration alone can be adequate proof, see chapter III.G.4 "Evaluation of evidence".

2.5.4 Ranking of means of evidence

See in this chapter III.G.4.2.1.

2.6. Other documents

As the EPC neither defines the term "documents" (Art.117(1) EPC) nor gives any indication of the probative value of such documents, the principle of free evaluation of evidence applies. **Any kind of document**, regardless of its nature, is **admissible** during proceedings before the EPO, including appeal proceedings (T.482/89, OJ 1992, 646).

In T.1698/08 the respondent (patentee) objected to the admission of an (**internet**) extract from the Zürich Commercial Register as it stated at the end that the information was provided without warranty and had no legal effect whatsoever, which in its opinion had the consequence that the extract could not be considered as a means of evidence within the meaning of Art.117(1) EPC. The board stated that a refusal to admit such a piece of evidence (an uncertified extract from a commercial register) could therefore not be based on Art.117(1) EPC. The board decided that there was no reason to exercise its discretion to refuse to admit the evidence, as it could neither be said that it was irrelevant nor that it was unnecessary. A **refusal** to admit it could in any case **not be based** on statements in